

Lin Tze Kin (suing as co-executor of the estate of Tan Ah Kar, deceased) and another v Lim Sze Eng and another

[2026] SGHC 129, Originating Claim No 672 of 2024

General Division of the High Court of the Republic of Singapore

Jurisdiction

Singapore

Area of law

Equity, property law, trusts, equitable accounting, limitation of actions, resulting and constructive trusts

Legal question

Whether a half-share of property transferred to defendants in 2008 belonged beneficially to the deceased TAK or to the defendants pursuant to a purported 1993 agreement. Whether the defendants are entitled to equitable accounting for improvements made to the property. Whether the deceased held \$1.5m on trust for the first defendant. Whether the deceased had a beneficial interest in two property units purchased in 2001.

Key facts

TAK and her late husband LWC owned a property as joint tenants, which TAK became sole owner of upon LWC's death in 1992. LWC's estate had an overdraft facility secured by the property. In 1993, the defendants claim they agreed to purchase the property for \$570,000 to discharge the loan, though no documentary evidence supports this. In 2008, TAK transferred a half-share of the property to the defendants by registered transfer, while retaining a half-share as tenant-in-common. In her 2012 will, TAK bequeathed her half-share to C1 and his sons. From 2007-2021, the defendants undertook redevelopment works costing approximately \$701,475 and acquired adjoining land. In 2001, two property units (FEP Units) were purchased in the names of TAK, D1 and D2 for approximately \$1.4 million; TAK claimed she contributed \$150,000 as downpayment. The FEP Units were sold in 2007 for \$3.78 million, with proceeds retained by D1. D1 claims TAK held approximately \$1.5 million on trust for him from 1988 to 2021.

Holding

The court found that the purported 1993 agreement for the defendants to purchase the property for \$570,000 never existed. The defendants failed to discharge their burden of proof as there was no documentary evidence supporting payment of \$570,000, and D1's explanations regarding funds from Taiwan property sales and banking slips were unreliable and contradictory. The court found D1 orchestrated the registration of the 3/6/08 Notice of Death to enable acquisition of adjoining land for redevelopment, after which he caused TAK to transfer a half-share to the defendants without consideration. D1's conduct over 14 years before seeking transfer, coupled with TAK's continued reference to 'her' half-share in recordings and her 2012 will (made when she had good cognitive capacity), demonstrated TAK beneficially owned her half-share until death. The court found

recordings of TAK reliable as she only suffered cognitive decline from 2020 onwards. The court ordered the property sold and granted defendants a right of first option to purchase TAK's half-share. The court found defendants entitled to equitable accounting for improvements made from 2007-2021 (totalling approximately \$701,475) but rejected claims regarding 1998 works as unpaid by defendants. The court found no valid trust relationship regarding the \$1.5 million claimed by D1, as evidence showed these were TAK's own funds or funds from other sources. The court found no evidence TAK had a beneficial interest in the FEP Units, as the \$150,000 contribution was TAK's own money, not from D1's entrusted sums.

Significance

This judgment addresses important principles regarding proof of oral family arrangements affecting real property, particularly the evidential difficulties in establishing such agreements decades after alleged conclusion. It clarifies the weight accorded to property registrations and wills as evidence of beneficial ownership in co-ownership disputes. The decision demonstrates judicial skepticism toward unsupported claims of consideration in property transfers within families. The case establishes that equitable accounting is available to co-owners who improve property, but only where expenditure is proven by documentary evidence. Significantly, the judgment addresses admissibility and weight of hearsay evidence through recordings of deceased persons under the Evidence Act, with emphasis on assessing the declarant's mental capacity at time of statements.

Precedent impact

The judgment relies on and applies principles from *Loo Chay Sit v Estate of Loo Chay Loo* (presumption of indefeasibility of title), *Su Emmanuel v Emmanuel Priya Ethel Anne* (equitable accounting principles), *Tan Chui Lian v Neo Liew Eng* (discretionary application of equitable accounting), *Tan Yew Huat v Sin Joo Huat Hardware* (subsequent conduct in determining oral agreements), and *The 'Luna'* (subsequent conduct and oral agreements). The case reinforces the high evidentiary burden on parties asserting oral agreements regarding property transfer and the importance of documentary evidence in discharging such burden.

Full judgment URL

https://www.elitigation.sg/gd/s/2026_SGHC_129